MONTHLY RENTAL AGREEMENT

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Date 07/15/2020

1. **TENANT HEREBY RENTS** the premises at: 1234 Acme Lane

   ABC WA 12345 Unit N/A

2. **TENANT SHALL OCCUPY** said premises beginning (date) 08/15/2020 and ending (date) 08/15/2021. Occupancy for a period less than 12 months may be charged an ***early release fee*** of up to $2795 to cover marketing and turn-over costs.

3. **OCCUPANCY SHALL BE LIMITED** jointly and severally to the following persons (adults and children under 18). ***Note:*** *Landlord or agent must approve sublet of premises, or over-night visitors staying more than 7 consecutive or 14 total days.*

   _____

   Provisions for pets/animals: _____ ***smoking***: No smoking ***no. vehicles***: _____ ***RV/Boats***: _____.

4. **TENANT TO PAY** a monthly rent of $2795 per month ***by the first day*** of each month (or rental period) to the landlord or agent beginning on (date) 09/01/2020; pay $ 2795 any pro-rata rent for the calendar period 08/15/2020 through 09/01/2020; and pay $ 2795 towards last month's rent. Additional parking or other monthly fees, if any: $ 0 to cover N/A.

5. **UTILITIES** paid by landlord (checked): ___cable TV, ___ electric, gas, water, ___ sewer, garbage, Internet
   Tenant must pay all other utilities; failure to promptly call in may result in a $35 charge. Despite this being a lease for 2 floors out of 3 for the premises, the tenant agrees to pay the full amount of the utilities (non-checked) for the entire premises.

6. **TENANT TO PAY** a security fee of $3000, of which $800 shall be nonrefundable to cover: Cleaning house, carpet and fini. After additional deductions for cleaning and repairs necessary to restore the premises to its original condition (less allowance for reasonable wear and tear), along with deductions for any rent due (including rent loss during periods of restoration), late fee, caused inspection/eviction, utility, notice, legal and any breach of contract costs, the balance of the security fee shall be refunded pro rata to any or all of the remaining tenants as follows: 10% of the remaining balance for up to one month of occupancy; 20% for two months, 30% for 3 months, 40% for 4 months, 50% for 5 months, …and so forth until 100%for 10 months or more of occupancy; **PROVIDED:**
   (a) Said premises are kept picked up and neat following notice of vacancy (for showing to prospective tenants);
   (b) Tenants agree and cooperate to the preparation and showing of the premises to prospective tenants at reasonable times;
   (c) No evidence of non-approved pets (odors, stains, droppings, fleas); no unauthorized smoking, painting or remodeling;
   (d) Lawn is mowed, maintained and all grounds are cleared (as applicable); all waste is hauled away; all occupants and belongings are removed;
   (e) Landlord or agent was notified per Item 10 below; or landlord/agent agreed with tenant to an exception; and
   (f) 1 ***door***, 0 ***laundry***, 1 ***garage door***, and 1 ***mail box*** keys are returned to landlord or agent (plus all copies).

   Any refundable pre-paid rent shall first apply to final balances due landlord not covered by security fee. Refund checks void if not claimed, cashed or deposited within 90 days. *For tenant-responsible damages or neglect during tenancy, said costs may be deducted anytime from the security fee following 10-day written notice to cure, with 30-day deadline for tenant to replenish.*

7. **TENANT AGREES AND UNDERSTANDS** that any of said security fee ***may not*** be applied by the tenant ***toward rent*** at any time. ***Any security fee refund or shortage***, as per itemized statement (or estimate), shall be processed ***between*** 2 and 14 days following rental agreement termination and vacation of premises. The security fee shall be held in trust per RCW 59.18.270.

8. **DELIVERY OF RENT/NOTICES**: Rent is due on the ***first day of each monthly rental period,*** and is the responsibility of ***tenant*** to mail/deliver payment at landlord/agent option in cash, check, money order/cashier check, direct deposit, etc., along with all notices and written requests, to the following address or location:
   zillow.com online payments or email bob@hotmail.com to get more deta Landlord/agent will not be responsible for any lost or missing cash payments *not personally handed to landlord/agent.* If by start date, tenant fails to call/show up, get keys, and pay all move-in money due, landlord/agent may immediately terminate agreement with no refunds.

9. **LATE/NSF/DEFAULT RENT**: Any rent due ***not paid by the 4th day*** of the monthly rental period is subject to a ***$40.00 late fee*** charge with an additional ***$10.00*** for each late day thereafter, ***including immediate late fee billing and eviction notice.*** Late fees assessed concurrent with rent due shall be considered rent as due. ***NSF checks*** shall be assessed $30.00 each along with any additional late day fees. If ***tenant defaults*** in rent payment, is absent from the premises without notice, and there is reason or cause to believe tenant is terminating occupancy, the premises will be ***considered abandoned***, entitling landlord or agent to post notice, ***take immediate possession***, change locks, and store of any remaining items.

10. **NOTICES:** Tenant shall give the landlord or agent at least 20 days' written notice ***prior to the end of the monthly rental period*** of intention to vacate the premises. (***Shorter*** notices, or notices ***other*** than for the end of the period, require ***approval*** of landlord.) Landlord or agent may also give 20-day no-cause notice to tenant to terminate tenancy ***(except in Seattle)***. Tenant shall, at the expiration of any notice vacate provisions, shall surrender the premises and keys to the landlord/agent per this agreement.
Maintenance & Showing: Following proper landlord/agent notice, tenant shall allow access to unit at reasonable times. Tenant failure to so honor access is cause to assess tenant for any service cancellation costs, and $100 per RCW 59.18.150(8).
Changing Premises: If tenant relocates to another unit of the landlord, a relocation fee may be charged in addition to any cleaning or damage charges against the previous unit. Security fees and credit for rent shall transfer to the new unit.

11. **SIGNS/ACCESS:** Landlord/agent may enter yard and place/maintain business signs/postings (e.g. rent, lease, sale) on the premises as deemed necessary for business operations. Additionally, landlord or agent may enter the tenant's premises for purposes of: (1) inspection; (2) cleaning, repairs or alterations; (3) other services; or (4) showing premises; ***provided***, access is at reasonable times with proper notice (***no notic***e required for emergency, end/term or abandonment). Tenant notice to vacate, or request for service or repairs, shall constitute tenant-approved notice of respective access by landlord or agent (in absence of tenant objection).

12. **PUBLIC SAFETY:** Dwelling is equipped with ✔ hard-wired and/or ___battery-operated smoke/heat detectors, and ✔ CO alarms in working order. Tenant is responsible to maintain the devices in working order; tenant failure to comply includes a $200 fine per RCW 43.44.110(4). ***If any device is later found inoperable. landlord may charge tenant a $50 compliance fee/each.*** If duplex, multiplex or apartment: the building has a sprinkler system yes ✔ no; a fire alarm system yes ✔ no. Unless attached or noted, the building may not have a smoking/pot policy, nor an emergency notification, relocation or evacuation plan for occupants. The premises may include individuals that have or will commit criminal acts; ***report*** all suspicious activities to police. Tenant ***will not*** knowingly/freely give unit keys to outsiders, nor allow entry of any felon, law violator or repeat abuser without landlord written approval. ***Intentional and malicious*** *property damage, impair, removal or deface by tenant is a criminal offense under 9A.52 RCW.*

13. **CHANGE IN TERMS OR RENT:** Effective anytime upon written approval of all affected parties; ***or upon 30 day*** landlord-written notice (effective at the end of the corresponding rental month). All other provisions shall remain intact. Rent is subject to but not limited to a 7% increase every year.

14. **INSURANCE/REPAIRS:** Tenants should obtain insurance on their personal property to include theft, vandalism, pests, accident, storm, cold or heat, mold, flood, water, and electrical damages, as a minimum. *(Landlord/agent not responsible for damaged/missing tenant property.)* Landlord/agent will promptly respond to tenant written requested repairs, but will not be monetarily responsible for: (1) tenant disruptions or inconveniences during habitable periods of repair, drying, scheduling or bidding of same; (2) tenant/guest injuries incurred in or around obvious areas of maintenance, repair, or construction; (3) housing or other costs incurred by tenant during good-faith periods of landlord or other activities; nor (4) costs caused by tenant neglect.

15. **ATTORNEY/COLLECTION/SERVICE FEES:** Tenant agrees to pay all landlord/agent charges including 12% annual interest on delinquent accounts, and all law-allowed attorney/collection fees necessary for actions arising out of tenant default or breach.

16. **PREMISES USE:** Tenant shall not use said or neighboring premises for any illegal purpose, or for any other purpose than that of a residence. No excessive traffic or visitors (e.g. more than 3-4 drive-ups or walk-ins per day) without landlord/agent approval. Tenant shall not allow entry of anyone in violation of court protection orders. Tenant to conform to all covenants, codes, statutes, ordinances; and landlord/agent rules regarding occupancy. ***No unlawful drugs/activities, excessive drinking, public disturbances, verbal abuse, spiteful threats, unauthorized pets/firearms/smoking/pot on premises. Violations are cause for eviction.***

17. **OPERATION, MAINTENANCE, STORAGE, & ALTERATIONS TO PREMISES:** On a ***continuing*** basis, tenant agrees to:
(a) ***Keep premises*** in a clean, neat, and sanitary condition; ***no parking***, storage or accumulation of debris on lawn or yard;
(b) ***Dispose of*** all rubbish, garbage, and waste in a clean and sanitary manner--at reasonable intervals--and assume all costs of extermination and fumigation for infestation caused by tenant; not feed straying pets or animals; not temporarily host pets;
(c) ***Properly ventilate and operate*** all electrical, gas, heating, plumbing, septic, facilities, fixtures, doors, windows, locks, and appliances; ***No*** portable kerosene/gas/incense burning; ***keep*** hot water tank at 120 degree maximum; ***limit*** candle burning; no excessive odorous chemicals/sprays/vapors; ***restrict*** toilets to biological waste and tissue paper; keep drains clear;
(d) ***No BBQs/open fires/combustion*** in units or under eaves, canopies, balcony over-heads, or under building structures or covers; no fire pits. *(Note: Carbon monoxide (CO) is a very poisonous combustion gas that cannot be seen or smelled, and can afflict or kill!)*
(e) ***Pay for, replace or repair*** in a ***landlord-approved*** manner, all items (including doors, windows, locks, light bulbs, smoke/heat/CO alarms) damaged or made inoperable during occupancy; ***have corrected or repaired*** any plumbing/fixtures clogged or broken by misuse or neglect; and where applicable, ***use due precaution*** against freezing or stoppage of water pipes in and around the premises;
(f) ***Report all*** plumbing/roof/water leaks, ***and*** all mold, code and other hazardous conditions to landlord/agent within 48 hours to avoid charges for inspections, presumptive damages, and increased utility fees ***caused by*** lack of timely reporting ***to landlord;***
(g) ***Not deface, damage, impair, or remove*** any property, facilities, equipment, and appliances; ***not install/hang*** TV/radio antennas, decorations, signs, postings, nor other items without landlord/agent approval except as authorized under FCC regulations; For any installations, landlord/agent may assess an added refundable $250 security fee to cover any removal costs;
(h) ***Not grow*** medically-approved or other marijuana in or around the premises; ***Limit supply*** for own medical purposes per RCW 69.51A.040; ***Not smoke/vaporize*** same anywhere inside premises, nor in any unauthorized outside areas;
(i) ***No unauthorized remodeling/contracting;*** not climb ladders/roofs, paint/wallpaper, change fixtures/locks, or use/run dangerous equipment;
(j) ***Not store non-operating vehicles***, nor boats, RV's, motor cycles, trailers, firearms, equipment, tools, hazardous materials, liquids, paints, fuels/oils, chemicals, waste or non-using items ***on premises*** without landlord/agent approval; no waterbeds;
(k) ***Maintain reasonable/respectful peace and quiet*** with other tenants/neighbors and ***pay*** for any caused damages therein; no fireworks; No disturbing TV's, sound systems, musical instruments, or other disturbing activities; No fireworks of any kind.

18. **MOLD/LEAD PAINT:** ✔ Copy of State-approved mold information hand-out is provided, or ___ posted on the premises per RCW 59.18.060(12). For pre-1978 housing, ___ a federal-approved pamphlet on lead poison prevention is also provided. ***BEWARE:*** Touching, breathing or eating lead paint chips/construction dust can be hazardous to people...*especially children!*

19. **YARD/OUTSIDE PREMISES:** Where applicable (y/n)y_____, tenant agrees to mow, water, weed, and maintain grounds in good condition (subject to any landlord specifics); and to keep own driveways, walks, porches, and garages clean and clear of obstructions, and pay costs of any so used utility. Failure to comply following notice will result in charges to tenant for necessary remedy. Landlord/agent may reasonably enter open yards and common areas to show, inspect and service without notice. No trampolines, swimming pools, swing or climbing sets, or other such "*attractive nuisances*" without written approval of landlord/agent. ***Unauthorized parking, storage, or accumulation of waste may be assessed up to $10.00 per day per violation***.

20. **FURNISHINGS PROVIDED:** Included are stove, refrigerator, ~~drapes, shades, curtains,~~ smoke/CO alarms, and any ~~cable boxes~~ in place upon move-in, and also the following: microwave, diswasher, washer, dryer, lawn mower and windo

21. **MOVE-IN CONDITION REPORT:** The landlord/manager and tenant each state they have inspected the premises to be rented, including the walls, floors, countertops, carpets, drapes, applicable furniture, and appliances in each room; and all windows, doors, locks, smoke/CO alarms, electrical features, faucets and plumbing fixtures, etc. ***Subject to any defects reported below (#23) or within 30 day (#22),*** all items in the premises were inspected and initially found clean, undamaged, and in good working order.

22. **CONDITION REPORT UP-DATE:** *Tenant to complete and return any/all condition report up-dates by 30 days of move in*.

23. **OTHER/ADDENDUM:** None

Parking Assignment: Garage ***Carpets - Special Note:*** _____

Landlord/agent not liable for any violations/repairs not first reported in writing by tenant to landlord/agent in a timely manner. Tenant is responsible and liable for all adverse activities and consequences of all occupants, guests, and known intruders.

24. **DELIVERY OF POSSESSION:** If for any reason landlord or agent fails to deliver possession of these premises at the start of this agreement, rent shall be abated until tenant possession. All other aspects of this agreement shall remain in full force. In no event shall landlord or agent be liable for damages caused by failure to deliver possession of the premises. If possession is not given tenant within 7 days of the start date, tenant may terminate this agreement with full refund by giving written notice.

25. **EVICTION PURSUANT TO WRIT OF RESTITUTION:** Tenant(s) HEREBY OBJECTS to the storage of their personal property. Tenant(s) understand this will result in their property being placed on the nearest public right-of-way.

26. **RECEIPT OF MONEY PAID:** Tenant has paid $3000 in check for security fee; and paid $ 1938 in check for rent covering period 08/15/2020 through 09/01/2020.

In addition: _____

27. **IN WITNESS,** tenant(s) and landlord/agent have reviewed this rental agreement as completed, being severable/reasonable, and superseding, and agrees to same per RCW 59.18 (effective immediately upon signing of all contracting parties and landlord/agent)

_____ _____ _____

(All Occupants 18 or Older Sign)

Lisa	557 Dwight Way, Blaine, WA 12345	123-123-1234
(Landlord/Manager Sign)	(Landlord/Manager Address)	(Landlord/Manager Phone)

28. **CO-SIGNER AGREEMENT** (optional): Co-signer agrees to assure, guarantee, and not contest performance of this agreement, and to pay a $_____performance fee (refundable less any remaining amounts due not covered by the security fee).

_____	_____	_____
(Signature)	(Printed Name)	(Soc Sec Number)
_____	_____	_____
(Phone)	(Address)	(City, State, Zip)